

SENATE No. 2372

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to mobile carrying devices.

PETITION OF:

NAME:

Sal N. DiDomenico

DISTRICT/ADDRESS:

Middlesex and Suffolk

SENATE No. 2372

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 2372) of Sal N. DiDomenico for legislation relative to mobile carrying devices. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2228 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to mobile carrying devices.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 90 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting in Section 1 after the words “shall not include motorized
3 bicycles” the following words:- "or mobile carrying devices, as defined in Section 1J".

4 SECTION 2. Chapter 90 of the General Laws, as appearing in the 2022 Official Edition,
5 is hereby amended by adding after Section 1I, the following section entitled:-

6 "Section 1J. Mobile carrying devices:

7 (1) MOBILE CARRYING DEVICE. An electrically powered device that: (a) Is operated
8 on sidewalks and crosswalks and intended primarily for transporting personal property; (b)
9 Weighs less than 90 pounds, excluding cargo; (c) Has a maximum speed of 12.5 miles per hour;
10 (d) Is equipped with a technology to transport personal property with the active monitoring of a

property owner; and (e) Is primarily designed to remain within twenty-five feet of the personal property owner.

(2) A mobile carrying device is not considered a vehicle unless expressly defined by law as a vehicle.

(3) A mobile carrying device may be operated on a sidewalk or crosswalk so long as all of the following requirements are met: (a) the mobile carrying device is operated in accordance with the local ordinances, if any, established by the local highway authority governing where the mobile carrying device is operated; (b) a personal property owner is actively monitoring the navigation and operation of the mobile carrying device; and (c) the mobile carrying device is equipped with a system that enables the mobile carrying device to come to a controlled stop.

(4) A personal property owner monitoring the mobile-carrying device may not allow a mobile-carrying device to do any of the following: (a) fail to comply with traffic or pedestrian control devices and signals; (b) unreasonably interfere with pedestrians or traffic; (c) transport hazardous material; or (d) operate on a street or highway, except when crossing the street or highway within a crosswalk.

(5) A mobile carrying device has the rights and obligations applicable to a pedestrian under the same circumstances, except that a mobile carrying device shall yield the right-of-way to a pedestrian on a sidewalk or crosswalk.

(6) A personal property owner may not operate a mobile carrying device unless the person complies with this section.

(7) A violation of this section is an infraction.